

Federation, Province and Local Level (Coordination and Inter-relation) Act, 2020

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Federal, Provincial and Local Level (Coordination and Interrelation) Act, 2077 (2020)

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Amending Act

1. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

Act Number 11 of the year 2077 (2020)

An Act Made to Provide for Coordination and Interrelation between the Federal, Provincial and Local Levels

Preamble: Whereas, for the strengthening of the pluralism-based multi-party competitive federal democratic republican governance system adopted by the country, it is desirable to regulate the interrelation between the Federation, Province and Local Level exercising state power pursuant to the Constitution of Nepal on the basis of cooperation, coexistence, coordination and mutual support;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Federal, Provincial and Local Level (Coordination and Interrelation) Act, 2077 (2020)."

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Inter-Provincial Council" means the Inter-Provincial Council pursuant to Article 234 of the Constitution.

(b) "Council" means the National Coordination Council pursuant to Section 16.

(c) "Province" means a Province formed pursuant to the Constitution.

(d) "Provincial Coordination Council" means the Provincial Coordination Council pursuant to Section 24.

(e) "Thematic Committee" means the Thematic Committee pursuant to Section 22.

(f) "Constitution" means the Constitution of Nepal.

(g) "Local Level" means a Rural Municipality or Municipality. Chapter-2

Bases of Interrelation between the Federal, Provincial and Local Levels

3.

Bases of Interrelation between the Federal, Provincial and Local Levels: (1) In addition to the provisions made in the Constitution, other bases of interrelation between the Federation, Province and Local Level shall

be as follows:- (a) Fundamental subjects of national interest, (b) Protection of national prestige and unity, (c) Observance and implementation of the directive principles, policies and obligations of the state, (d) Implementation of fundamental rights, (e) Contribution to the respect and implementation of national policies, (f) Integrality and coherence of the provisions of the Constitution, (g) Building a socialism-oriented economy based on democratic values and norms, (h) Respect for the existence and functional autonomy of another level while exercising rights on matters of common interest and concern, subject to the Constitution, (i) Equal treatment and security among Nepali citizens, (j) Mutual coordination, consultation, cooperation, and exchange of information in the implementation of laws, policies, and judicial or administrative decisions, (k) Conservation of natural and physical resources, (l) Sustainable management of natural, physical and financial resources and equitable distribution of benefits, (m) Prevention of corruption and promotion of good governance, (n) Mutual assistance and collaboration, (o) Adoption of proportional, inclusive and participatory governance system, (p) Effectiveness of services provided to citizens, (q) Mutual assistance and coordination in trade, transportation of goods and expansion of services, (r) Other matters provided in the prevailing law relating to maintaining coordination and interrelation between the Federation, Province and Local Level. (2) While making laws on matters within their competence, the Province and Local Level shall also take as a basis the matters referred to in sub-section (1). Chapter-3 Formulation of Laws, Policies and Plans 4.

Matters to be Considered while Making Law or Policy: (1) While making any law or policy on its exclusive or concurrent powers, the Federation shall, in addition to the Constitution and other matters pursuant to this Act, consider the following matters:- (a) Not to encroach upon the exclusive powers of the Province and Local Level, (b) That it would be appropriate to implement any matter from the Province or Local Level from the perspective of cost, sustainability or effectiveness of service delivery, (c) That the roles of the Federation, Province and Local Level shall be such that duplication does not occur in the implementation of any matter. (2) While making any law or policy on its exclusive or concurrent powers, the Province shall, in addition to the Constitution and other matters pursuant to this Act, consider the following matters:- (a) Not to encroach upon the exclusive powers of the Federation or Local Level, (b) Not to conflict with federal law, (c) To be consistent with and assist in the implementation of national policies or priorities, (d) That it would be appropriate to implement any matter from the Local Level from the perspective of cost, sustainability, effectiveness of service delivery, (e) That, as far as possible, the role of the Local Level shall be such that duplication does not occur in the implementation of any matter. (3) While making any law or policy on its exclusive or concurrent powers, the Local Level shall, in addition to the Constitution and other matters pursuant to this Act, consider the following matters:- (a) Not to encroach upon the exclusive powers of the Federation or Province, (b) Not to conflict with federal and provincial laws, (c) To be consistent with and assist in the implementation of national policies or priorities, (d) To be consistent with and assist in the implementation of provincial policies or priorities, (e) To avoid duplication in the implementation of any matter. (4) Notwithstanding anything contained in sub-sections (2) and (3), while making laws, the Province or Local Level shall not make them in such a way as to:- (a) Impose restrictions on fundamental rights, constitutional rights or rights conferred by federal law, or limit the exercise of such rights, (b) Prohibit anyone from doing work which a federal law allows anyone to do, or allow anyone to do work which a federal law prohibits anyone from doing. 5.

Implementation of Exclusive Powers: (1) The Federation, Province and Local Level shall make necessary laws on and implement their respective exclusive powers. (2) While making laws or implementing them pursuant to sub-section (1), if there is a provision in the Constitution regarding that matter requiring compliance with any condition or standard, the Province or Local Level shall implement or make law subject to such condition or standard; and if there is a provision in the Constitution that the Federation shall make

policy, it shall implement or make law subject to such policy or the federal law made under such policy. (3) While implementing or making laws on a matter falling under the exclusive powers of more than one level among the Federation, Province and Local Level, the Province shall implement or make law in a manner not contrary to federal law, and the Local Level shall implement or make law in a manner not contrary to federal and provincial law. 6. Implementation of Concurrent Powers: (1) While implementing a matter of concurrent powers or making a law on such matter, the Federation shall make the following provisions:- (a) Determination of offenses and punishments, construction of infrastructure structures of national level or national importance or extending to more than one Province, and determination and regulation of quality or standards uniformly applicable to all Provinces shall be according to federal law, (b) The following matters shall be according to provincial law:- (1) Construction and operation of infrastructure structures such as roads, electricity, drinking water, irrigation at the provincial level, (2) Enhancement of public awareness on matters such as education, health, environment, (3) Employment promotion, entrepreneurship development, social security, (4) Service delivery at the provincial level, (5) Provincial level regulation relating to public health, consumer interest, quality of public service delivery. (c) Service delivery at the local level and regulation at the local level relating to public health, consumer interest, quality of public service delivery, and enhancement of public awareness shall be from the Local Level or according to local law. (2) While implementing a matter falling under the concurrent powers of the Federation and Province or making a law on such matter, the Province shall implement or make law in a manner consistent with the relevant federal law. (3) Notwithstanding anything contained in sub-section (2), in the absence of a federal law on such matter, the Province may implement such matter or make a law. (4) In matters listed in Schedule-9 of the Constitution, in the absence of a federal law, the Province; and in the absence of a federal or provincial law, the Local Level may, subject to the Constitution and this Act, make necessary laws or implement such matter.

7. Matters to be Regulated by Federal Law: (1) The following matters shall be regulated by federal law:-

- (a) Matters falling under the list of exclusive powers of the Federation,
- (b) Matters to be done according to the policy or standards made by the Federation,
- (c) Matters relating to establishing any act as a criminal offense and providing for punishment,
- (d) Matters relating to establishing specialized courts, judicial bodies or tribunals or altering the jurisdiction of such courts, judicial bodies or tribunals,
- (e) Matters of residual powers.

(2) Notwithstanding anything contained in clause (c) of sub-section (1), provision may be made for administrative fines and penalties according to law on any matter operated or administered by the Province or Local Level. 8. Matters that may be Implemented by Province or Local Level: (1) While making a law on a matter of its exclusive powers or residual powers, the Federation may provide that any function under such matter or power shall be performed by the Province or Local Level or any body or officer of the Province or Local Level.

(2) While making a law on a matter of exclusive or concurrent powers or residual powers, the Federation may provide for the implementation of matters among those to be implemented under such law which, from the perspective of cost, sustainability and effectiveness of service delivery, are found suitable to be implemented from the Province or Local Level, by the Province or Local Level.

(3) While making a law on a matter of exclusive or concurrent powers, the Province may provide for the

implementation of matters among those to be implemented under such law which, from the perspective of cost, sustainability and effectiveness of service delivery, are found suitable to be implemented from the Local Level, by the Local Level.

(4) Two or more Provinces may, by making a law, jointly implement or operate any infrastructure construction or any other project related to any matter falling under the exclusive or concurrent powers of the Province.

(5) Two or more Local Levels may, by making a law, jointly implement or operate any infrastructure construction or any other project related to any matter falling under the exclusive or concurrent powers of the Local Level. 9.

10. Provision for Appeal to District Court: While making a law, the Province or Local Level may provide for an appeal against a decision involving administrative fines and penalties made under such law to the relevant District Court. 11. Coordination and Consultation: (1) The Government of Nepal shall coordinate and consult with the relevant Provincial Government as necessary on the following matters:-

- (a) While making laws and policies on matters of concurrent powers listed in Schedule-7 of the Constitution,
- (b) While making laws and policies on matters listed in Schedule-6 of the Constitution upon the request of two or more Provinces,
- (c) While implementing large projects of national importance, inter-provincial projects or programs,
- (d) While making national plans and policies in a manner that the Province also has to observe or implement them,
- (e) While implementing national roads, electricity transmission lines and inter-provincial irrigation or schemes of a similar nature operating inter-provincially,
- (f) While entering into treaties or agreements on matters falling under the list of powers of the Province,
- (g) Other matters deemed appropriate by the Government of Nepal.

(2) The Government of Nepal shall coordinate and consult with the Local Level as necessary on the following matters:-

- (a) While making national plans and policies in a manner that the Local Level also has to observe or implement them,
- (b) Other matters deemed appropriate by the Government of Nepal.

(3) The Government of Nepal shall coordinate and consult with the Province and Local Level as necessary on the following matters:-

- (a) While making laws and policies on matters of concurrent powers listed in Schedule-9 of the Constitution,
- (b) On policy aspects of revenue distribution and implementation of new tax systems,
- (c) While distributing natural resources and the benefits thereof.

(4) In addition to the matters mentioned in sub-section (1), while formulating laws on other matters concerning the Provincial Government and matters of residual powers pursuant to Article 58 of the Constitution, the Government of Nepal shall, as necessary, consult and coordinate with the Provincial Government.

- (5) While making laws and policies on matters listed in the list of concurrent powers pursuant to Schedules 7 and 9 of the Constitution, the Province shall coordinate and consult with the relevant thematic ministry or body of the Government of Nepal.
- (6) While making laws and policies on matters listed in Schedule-9 of the Constitution, the Local Level shall coordinate and consult with the relevant thematic ministry of the Government of Nepal and also with the relevant thematic ministry or body of the concerned Provincial Government.
- (7) While making laws and policies on matters listed in the list of concurrent powers pursuant to Schedule-9 of the Constitution, the Province shall coordinate and consult with the Local Levels within its Province.
- (8) If consultation is sought regarding any work or action pursuant to this Section, the failure to provide consultation shall not be deemed to have impeded the progress of such work or action, nor shall the fact that action was not taken according to the consultation alone be deemed to adversely affect the validity of any work or action.
12. Publication and Record of Laws: (1) Acts, rules, and formation orders made by the Federation shall be published in the Nepal Gazette.
- (2) Acts, rules, and formation orders made by the Province shall be published in the Provincial Gazette.
- (3) Acts and rules made by the Local Level shall be published in the Local Gazette.
- (4) Policies, directives, and procedures made by the Province and Local Level shall be published publicly.
- (5) The certified copies of Acts and rules made by the Province and Local Level shall be securely recorded and kept by the respective level.
- (6) The relevant Province and Local Level shall send a certified copy of the Acts, rules, and formation orders pursuant to sub-sections (2) and (3) to the Ministry of Law, Justice and Parliamentary Affairs of the Government of Nepal.
- (7) One copy of the Acts, rules, and other laws made by the Local Level shall also be sent to the Provincial Government.
- (8) The Government of Nepal may make necessary arrangements for maintaining an integrated record of public documents passed by the Federation, Province and Local Level pursuant to the Constitution and the prevailing law.
- (9) The Provincial Government and Local Level shall post notices published in the Provincial Gazette and Local Gazette in the form of the Gazette itself on their website and shall make arrangements for securing the electronic copy of such Gazette by adopting necessary security methods.
13. Project Design and Implementation: (1) The Federation shall design projects of national level or national importance, projects to be implemented in more than one Province, and projects requiring complex technical capacity or large investment, and members of the Federal Parliament shall have an advisory role in designing such projects.
- (2) The Provincial Government shall design provincial-level projects falling within the Province and to be implemented by the Province, and members of the Provincial Assembly shall have an advisory role in designing such provincial projects.
- (3) The Local Level shall design local-level projects falling within the Local Level and to be implemented by the Local Level.

(4) While designing projects, making budget provisions, and implementing them pursuant to this Section, the Province and Local Level shall do so based on the standards determined by federal law.

(5) While designing a project pursuant to sub-section (1), the Federation may do so in a manner to be implemented through the Province or Local Level, and such project shall be implemented by the relevant Province or Local Level.

(6) The Thematic Committee shall arrange for necessary coordination between the bodies related to projects designed by the Federation, Province or Local Level. 14.

Provision of Assistance: (1) While formulating laws, policies and plans on matters falling under the list of powers and responsibilities of the Province and Local Level, upon request from the Province and Local Level, the Government of Nepal may provide necessary assistance. (2) While formulating laws, policies and plans on matters falling under the list of powers and responsibilities of the Local Level, upon request from the Local Level, the Provincial Government may provide necessary assistance. (3) The Government of Nepal may prepare and provide draft model laws for the Province and Local Level to make laws. (4) While implementing laws, policies and plans made by the Federation, the Provincial Government and Local Level shall provide necessary assistance. (5) While implementing laws, policies and plans made by the Province and Local Level on matters falling under their list of powers and responsibilities, the Government of Nepal shall provide necessary assistance. 15. Cooperation: (1) The Federal Parliament, Provincial Assembly and Local Level may cooperate to maintain coherence and uniformity in management methods and work procedures. (2) For the purpose of cooperation pursuant to sub-section (1), the Federal Parliament, Provincial Assembly and Local Level may exchange information, hold discussions or consultations as necessary. Chapter-4 Council and Committees 16.

Formation of National Coordination Council: (1) To regulate coordination and interrelation between the Federation, Province and Local Level pursuant to this Act, a National Coordination Council shall be formed as follows:- (a) Prime Minister - Chairperson (b) Minister of Finance, Government of Nepal - Member (c) Minister of Law, Justice and Parliamentary Affairs, Government of Nepal - Member (d) Minister of Home Affairs, Government of Nepal - Member (e) Minister of Federal Affairs and General Administration, Government of Nepal - Member (f) Chief Ministers of Provincial Governments - Members (g) Leader of the Opposition Party in the House of Representatives or a member of the Federal Parliament designated by him/her - Member (h) Seven members, one from each Province, designated by the Prime Minister in accordance with the inclusive principle, including at least three women, representing the Chairperson or Vice-Chairperson of the Village Executive, the Mayor or Deputy Mayor of the Municipal Executive, and the Chief or Deputy Chief of the District Coordination Committee - Members (2) Thematic ministers and concerned officials or experts may be invited to the meeting of the Council as necessary. (3) The meeting of the Council shall be held at least once a year. (4) The date, time, venue and agenda for discussion of the meeting of the Council shall be as determined by the Chairperson of the Council. (5) A majority of members including the Chairperson shall constitute a quorum for a meeting of the Council. (6) The meeting of the Council shall be chaired by the Chairperson of the Council. (7) The procedures for meetings and decisions of the Council shall be as determined by the Council itself. 17.

Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To coordinate between the Federation, Province and Local Level for formulating laws and policies on matters of concurrent powers, (b) To coordinate on matters connected with national interest and concerns to be implemented at the provincial and local levels, (c) To coordinate to resolve complexities

relating to the implementation of national plans, policies and laws at the provincial and local levels, (d) To coordinate relating to the formulation of laws, policies and strategies that have an impact on inter-provincial and local levels, (e) To coordinate relating to the implementation of large development projects operating at the inter-provincial level, (f) To review and analyze policies, laws and plans made by the Federation, Province and Local Level relating to the implementation of federalism, (g) To carry out necessary work to maintain coherence in the service delivery from the Federation, Province and Local Level, (h) To provide suggestions to the Government of Nepal, Provincial Government and Local Government on matters of law-making and implementation, (i) To discuss and coordinate as necessary on matters sent for discussion by the Government of Nepal, Cabinet, Thematic Committee and Provincial Coordination Council. 18. Secretariat and Human Resources: (1) The Secretariat of the Council shall be located at the Office of the Prime Minister and Council of Ministers, Government of Nepal. (2) The Secretary of the Office of the Prime Minister and Council of Ministers shall act as the Secretary of the Council. (3) The Government of Nepal shall provide the necessary budget and human resources to the Secretariat pursuant to sub-section (1). 19. Study of Federal, Provincial and Local Laws: (1) A body designated by the Government of Nepal shall study laws made by the Federation, Province or Local Level and the status of their implementation. (2) While conducting a study pursuant to sub-section (1), such body may coordinate with the thematic ministry of the Government of Nepal and hold discussions with the concerned level. (3) The body pursuant to sub-section (1) shall submit a report with conclusions of the study conducted pursuant to this Section to the Council within the end of the month of Ashoj (mid-October) each year. 20.

Power to Make Recommendations: (1) Upon submission of a report pursuant to Section 19, the Council shall carry out necessary study and discussion on that matter. (2) While carrying out study and discussion pursuant to sub-section (1), the Council may, as necessary, form a special committee or also seek the opinion of relevant experts. (3) If, while carrying out study and discussion pursuant to sub-section (1) or (2), it appears that any law made by the Federation, Province or Local Level needs to be amended, the Council may recommend to the concerned level to amend such law. 21. Power to Form Special Committee: (1) The Council may, as necessary, form a special committee to regulate its work procedures. (2) The structure, functions, duties and powers of the special committee formed pursuant to sub-section (1) shall be as specified by the Council. (3) The provisions relating to meetings and decisions of the special committee pursuant to sub-section (1) shall be as determined by that committee itself. 22. Thematic Committee: (1) To bring effectiveness in works including policy and plan implementation, development and construction by maintaining coordination between the ministries of the Federation and Province having the functional jurisdiction of the relevant subject and the Local Level, the following Thematic Committees shall exist:- (a) Minister having the functional jurisdiction of the relevant subject of the Government of Nepal - Chairperson (b) Minister having the functional jurisdiction of the relevant subject of the Provincial Government - Member (c) One Mayor or Chairperson of the Local Level designated by the Chairperson - Member (2) The meeting of the Thematic Committee shall be held at least once a year. (3) The date, time, venue and agenda of the meeting of the Thematic Committee shall be as determined by the Chairperson of that Committee. (4) A majority of members including the Chairperson of that Committee shall constitute a quorum for a meeting of the Thematic Committee. (5) The meeting of the Thematic Committee shall be chaired by the Chairperson of that Committee. (6) The Thematic Committee may, as necessary, invite subject matter experts and representatives of concerned bodies to the meeting. (7) The Secretariat of the Thematic Committee shall be located at the relevant ministry of the Government of Nepal. (8) A first-class gazetted officer or an employee of equivalent rank of the relevant ministry designated by the Chairperson shall act as the Secretary of the Thematic Committee. (9) The procedures for meetings and decisions of the Thematic Committee shall be as

determined by that Committee itself. 23.

Functions, Duties and Powers of the Thematic Committee: The functions, duties and powers of the Thematic Committee shall be as follows:- (a) To consult with the Province and Local Level while formulating plans, policies and laws of the sector related to its subject, (b) To carry out necessary coordination to maintain uniformity, continuity and quality in sectoral plans, policies and programs and to bring effectiveness in the implementation of laws, plans, policies and strategies, (c) To provide suggestions to the Council for the formulation of national policies in the sector related to its subject, (d) To implement or cause to implement the decisions and directives of the Council, (e) To perform other functions specified by the Council. 24. Formation of Provincial Coordination Council: (1) To regulate coordination or interrelation between the Province and Local Level or between Local Levels within more than one district within a Province, a Provincial Coordination Council shall exist at each provincial level as follows:- (a) Chief Minister - Chairperson (b) Minister having the functional jurisdiction of financial affairs of the Provincial Government - Member (c) Minister having the functional jurisdiction of internal affairs of the Provincial Government - Member (d) Chief Secretary of the Provincial Government - Member (e) Persons designated by the Chief Minister, one from each district, in accordance with the inclusive principle, including at least one-third women, from among the Chairperson or Vice-Chairperson of the Village Executive, Mayor or Deputy Mayor of the Municipal Executive, and Chief or Deputy Chief of the District Coordination Committee within the Province - Members (f) Secretary of the Office of the Provincial Chief Minister - Secretary (2) The Secretariat of the Provincial Coordination Council shall be located at the Office of the Chief Minister and Council of Ministers of the relevant Province. (3) The procedures for meetings of the Provincial Coordination Council shall be as determined by that Council itself. 25.

Functions, Duties and Powers of the Provincial Coordination Council: (1) The Provincial Coordination Council shall maintain coordination and interrelation between the Province and Local Level and between more than one Local Level in the implementation of development projects or matters of concurrent powers operated by the Provincial Government or Local Level within the Province. (2) The Provincial Coordination Council may, as necessary, form a committee for any matter where coordination and interrelation need to be maintained. (3) If it appears appropriate to hold a discussion in the Council on any matter, the Provincial Coordination Council may, specifying the matter, make a request to the Council. (4) Upon receipt of a written request pursuant to sub-section (3), the Council may, after necessary discussion, provide guidance to the Provincial Coordination Council, the concerned Province or Local Level. (5) The guidance provided by the Council pursuant to sub-section (4) shall be observed by the concerned Provincial Coordination Council, the concerned Province and Local Level. 26. Coordination by District Coordination Committee: (1) The District Coordination Committee shall coordinate on the following matters:- (a) Works relating to development and construction carried out by the Federation or Province at the Local Level, (b) Activities performed by federal government offices, provincial government offices and Local Levels situated in the district, (c) Other activities specified pursuant to the prevailing law. (2) If any matter submitted to the Council or the Provincial Coordination Council pursuant to this Act includes a matter of coordination between Local Levels within a district, and it appears appropriate to coordinate or facilitate such matter through the District Coordination Committee, the Council or the Provincial Coordination Council may send such matter in writing to the relevant District Coordination Committee. (3) Upon receipt of a written request pursuant to sub-section (2), the District Coordination Committee shall act according to the written request from the Council or the Provincial Coordination Council and inform the Council or the relevant Provincial Coordination Council accordingly. Chapter-5 Dispute Resolution 27. Obligation to Perform Work Without Causing Dispute: The Federation, Province and Local Levels shall perform their functions within their respective jurisdictions in a manner that

does not give rise to disputes. 28.

Disputes Between Federation, Province and Inter-Province: (1) If any political dispute arises between the Federation and Province or between Provinces, any party to the dispute shall, within fifteen days from the date of the dispute arising, give written notice of such dispute to the Secretariat of the Inter-Provincial Council. (2) Upon receipt of a notice pursuant to sub-section (1), the Secretariat of the Inter-Provincial Council shall inform the Chairperson of that Council as soon as possible. (3) After being informed pursuant to sub-section (2), amended by Some Nepal Acts Amendment Act, 2082 (2025). the Chairperson of the Inter-Provincial Council shall convene a meeting of that Council and cause a discussion to be held on that matter. While conducting discussion in that manner, before making a decision regarding dispute resolution, a decision must be made as to whether such dispute is political or not. (4) The Inter-Provincial Council may form a sub-committee or task force to perform the functions pursuant to sub-section (3). (5) The structure, terms of reference, tenure and procedures of the sub-committee or task force pursuant to sub-section (4) shall be as determined by the Inter-Provincial Council at the time of forming such sub-committee or task force. (6) The Inter-Provincial Council shall resolve the dispute through the means of negotiation, discussion, consultation and conciliation pursuant to this Section. (7) If the dispute is not resolved through negotiation, discussion, consultation and conciliation pursuant to sub-section (6), the Inter-Provincial Council may make a necessary decision to resolve such dispute. (8) The decision made pursuant to sub-section (7) shall be implemented or caused to be implemented by the concerned parties. (9) The Inter-Provincial Council shall resolve the dispute within three months from the date of receipt of the notice of dispute pursuant to sub-section (1). (10) Notwithstanding anything contained elsewhere in this Section, the Inter-Provincial Council shall not make any decision pursuant to sub-section (7) on a dispute related to a matter pending before the Federal Parliament or Provincial Assembly. 29.

No Adverse Effect on Jurisdiction of Constitutional Bench: (1) Nothing contained in this Chapter shall be deemed to adversely affect the jurisdiction of the Constitutional Bench of the Supreme Court pursuant to Article 137 of the Constitution. (2) While resolving a dispute between the Federation, Province and Local Level, if the Constitutional Bench finds it appropriate from the nature of a dispute that any matter of such dispute should be resolved through mutual negotiation, consultation and conciliation, it may, as necessary, give a reasonable opportunity and encourage the concerned parties for that purpose. 30. Secretariat of the Inter-Provincial Council: (1) The Secretariat of the Inter-Provincial Council shall be located at the Office of the Prime Minister and Council of Ministers. (2) The Chief Secretary of the Government of Nepal shall act as the Secretary of the Inter-Provincial Council. Chapter-6 Miscellaneous 31. Consultation and Contact Between Federal Units: (1) While consulting with the Federation by the Province or Local Level on a matter where coordination or interrelation is to be maintained pursuant to this Act, it shall be done through the ministry of the Government of Nepal having the functional jurisdiction of the relevant subject. (2) The relevant ministry of the Government of Nepal shall conduct a necessary study on the matter consulted pursuant to sub-section (1) and resolve that matter. (3) Notwithstanding anything contained in sub-section (2), the relevant ministry of the Government of Nepal shall submit the following matters to the Thematic Committee:- (a) Implementation of matters related to concurrent powers, (b) Any policy matter requiring uniformity to be maintained between other Provinces or Local Levels, (c) Any other matter that cannot be resolved by the relevant ministry. (4) Among the matters submitted pursuant to sub-section (3), the Thematic Committee shall resolve matters it can resolve itself and shall submit the following matters to the Council:- (a) Any policy matter requiring implementation by maintaining coordination and uniformity in other Provinces as well, (b) Other matters of national importance not resolved by the Thematic Committee. (5) Information about the matters resolved and sent by the relevant ministry of the Government of Nepal or the Thematic Committee pursuant to sub-section

(2) or (4) shall be sent to the Secretariat of the Council. (6) Regarding matters where the Government of Nepal is required to maintain coordination or interrelation with the Province or Local Level pursuant to this Act, the relevant ministry of the Government of Nepal shall contact the relevant ministry of the Provincial Government or the relevant Local Level and arrange necessary provisions. 32.